

HOUSE No. 4553

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, September 29, 2025.

The committee on Financial Services, to whom was referred the joint petition (accompanied by bill, House, No. 1258) of Paul McMurtry, David F. DeCoste and others relative to coverage of medically necessary oral and dental care for head and neck cancer survivors, reports recommending that the accompanying bill (House, No. 4553) ought to pass.

For the committee,

JAMES M. MURPHY.

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The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act requiring coverage of medically necessary oral and dental care for head and neck cancer survivor.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 32A of the General Laws is hereby amended by inserting after
2 section 17Z the following section:-

3 Section 17AA. Any coverage offered by the commission to an active or retired employee
4 of the commonwealth insured under the group insurance commission shall provide coverage for:

5 (a) necessary pre-cancer dental care, including preventative and restorative treatment to
6 the hard and soft tissues of the oral cavity, fluoride treatments and trays, and medically necessary
7 dental procedures, to reduce or eliminate the risk of infection or to treat tooth decay or tooth loss
8 in enrollees.

9 (b) dental care that is required prior to the commencement of treatment for head and neck
10 cancer including, but not limited to, chemotherapy, immunotherapy, biological therapy, proton
11 therapy, and radiation therapy.

(c) post cancer necessary dental care, including preventative dental prophylaxis', scaling and root planing, quarterly cleanings, bi-annual assessments by a periodontist, fluoride treatments including trays, and medically necessary dental procedures to reduce or eliminate the risk of infection; or to treat tooth loss or decay directly or indirectly caused by head and neck cancer

treatment.

(d) dental procedures required as a result of treatments for head and neck cancer including, but not limited to, chemotherapy, immunotherapy, biological therapy, proton therapy, and radiation therapy

(e) laboratory assessments, medications, treatments, evaluations, examinations, and rehabilitation necessary for head and neck cancer treatment and the restoration of function.

(f) patient education, medical devices, prostheses, obturators, dental implants, rehabilitative services necessary to restore, maintain, or improve, the whole or partial function related to eating, breathing, voice, speech, quality of life, social functioning and swallowing; and to

approximate the normal appearance of any abnormal structures that is affected by a head and neck cancer diagnosis and/or the treatment of head and neck cancer, or the side effects resulting from the treatment.

(g) restorative and rehabilitative care including but not limited to: medications, restoration procedures, and other medical interventions required to address impairments resulting from head and neck cancer or its treatment.

SECTION 2. Chapter 118E of the General Laws is hereby amended by inserting after section 10Z the following section:-

Section 10AA. The division shall provide coverage for:

(a) necessary pre-cancer dental care, including preventative and restorative treatment to the hard and soft tissues of the oral cavity, fluoride treatments and trays, and medically necessary dental procedures, to reduce or eliminate the risk of infection or to treat tooth decay or tooth loss in enrollees.

(b) dental care that is required prior to the commencement of treatment for head and neck cancer including, but not limited to, chemotherapy, immunotherapy, biological therapy, proton therapy, and radiation therapy.

(c) post cancer necessary dental care, including preventative dental prophylaxis', scaling and root planing, quarterly cleanings, bi-annual assessments by a periodontist, fluoride treatments including trays, and medically necessary dental procedures to reduce or eliminate the risk of infection; or to treat tooth loss or decay directly or indirectly caused by head and neck cancer treatment.

(d) dental procedures required as a result of treatments for head and neck cancer including, but not limited to, chemotherapy, immunotherapy, biological therapy, proton therapy, and radiation therapy.

(e) laboratory assessments, medications, treatments, evaluations, examinations, and rehabilitation necessary for head and neck cancer treatment and the restoration of function.

(f) patient education, medical devices, prostheses, obturators, dental implants, rehabilitative services necessary to restore, maintain, or improve, the whole or partial function related to eating, breathing, voice, speech, quality of life, social functioning and swallowing; and to

approximate the normal appearance of any abnormal structures that is affected by a head and neck cancer diagnosis and/or the treatment of head and neck cancer, or the side effects resulting from the treatment.

(g) restorative and rehabilitative care including but not limited to: medications, restoration procedures, and other medical interventions required to address impairments resulting from head and neck cancer or its treatment.

SECTION 3. Chapter 175 of the General Laws is hereby amended by inserting before section 47CCC the following section:-

Section 47AAA. Any blanket or general policy of insurance described in subdivision (A), (C), or (D) of section one hundred and ten which is issued or subsequently renewed by agreement between the insurer and the policyholder, within or without the commonwealth, during the period within which this premium is effective, or any policy of accident or sickness insurance as described in section one hundred and eight which provides hospital expense and surgical expense insurance and which is delivered or issued for delivery or subsequently renewed by agreement between the insurer and the policyholder in the commonwealth, during the period within which this provision is effective, or any employers' health and welfare fund which provides hospital expense and surgical expense benefits and which is issued or renewed to any

person or group of persons in the commonwealth, during the period within which this provision is effective, shall provide coverage for:

(a) necessary pre-cancer dental care, including preventative and restorative treatment to the hard and soft tissues of the oral cavity, fluoride treatments and trays, and medically necessary dental procedures, to reduce or eliminate the risk of infection or to treat tooth decay or tooth loss in enrollees.

(b) dental care that is required prior to the commencement of treatment for head and neck cancer including, but not limited to, chemotherapy, immunotherapy, biological therapy, proton therapy, and radiation therapy.

(c) post cancer necessary dental care, including preventative dental prophylaxis, scaling and root planing, quarterly cleanings, bi-annual assessments by a periodontist, fluoride treatments including trays, and medically necessary dental procedures to reduce or eliminate the risk of infection; or to treat tooth loss or decay directly or indirectly caused by head and neck cancer treatment.

(d) dental procedures required as a result of treatments for head and neck cancer including, but not limited to, chemotherapy, immunotherapy, biological therapy, proton therapy, and radiation therapy.

(e) laboratory assessments, medications, treatments, evaluations, examinations, and rehabilitation necessary for head and neck cancer treatment and the restoration of function.

(f) patient education, medical devices, prostheses, obturators, dental implants, rehabilitative services necessary to restore, maintain, or improve, the whole or partial function

related to eating, breathing, voice, speech, quality of life, social functioning and swallowing; and to approximate the normal appearance of any abnormal structures that is affected by a head and neck cancer diagnosis and/or the treatment of head and neck cancer, or the side effects resulting from the treatment.

(g) restorative and rehabilitative care including but not limited to: medications, restoration procedures, and other medical interventions required to address impairments resulting from head and neck cancer or its treatment.

SECTION 4. Chapter 176A of the General Laws is hereby amended by inserting after section 8DDD the following section:-

Section 8EEE. A contract between a subscriber and the corporation under an individual or group hospital service plan that is delivered, issued or renewed within the commonwealth shall provide coverage for:

(a) necessary pre-cancer dental care, including preventative and restorative treatment to the hard and soft tissues of the oral cavity, fluoride treatments and trays, and medically necessary dental procedures, to reduce or eliminate the risk of infection or to treat tooth decay or tooth loss in enrollees.

(b) dental care that is required prior to the commencement of treatment for head and neck cancer including, but not limited to, chemotherapy, immunotherapy, biological therapy, proton therapy, and radiation therapy.

(c) post cancer necessary dental care, including preventative dental prophylaxis', scaling and root planing, quarterly cleanings, bi-annual assessments by a periodontist, fluoride

116 treatments including trays, and medically necessary dental procedures to reduce or eliminate the
117 risk of infection; or to treat tooth loss or decay directly or indirectly caused by head and neck
118 cancer treatment.

119 (d) dental procedures required as a result of treatments for head and neck cancer
120 including, but not limited to, chemotherapy, immunotherapy, biological therapy, proton therapy,
121 and radiation therapy.

122 (e) laboratory assessments, medications, treatments, evaluations, examinations, and
123 rehabilitation necessary for head and neck cancer treatment and the restoration of function.

124 (f) patient education, medical devices, prostheses, obturators, dental implants,
125 rehabilitative services necessary to restore, maintain, or improve, the whole or partial function
126 related to eating, breathing, voice, speech, quality of life, social functioning and swallowing; and
127 to approximate the normal appearance of any abnormal structures that is affected by a head and
128 neck cancer diagnosis and/or the treatment of head and neck cancer, or the side effects resulting
129 from the treatment.

130 (g) restorative and rehabilitative care including but not limited to: medications,
131 restoration procedures, and other medical interventions required to address impairments resulting
132 from head and neck cancer or its treatment.

133 SECTION 5. Chapter 176B of the General Laws is hereby amended by inserting after
134 section 4DDD the following section:-

135 Section 4EEE. A subscription certificate under an individual or group medical service
136 agreement delivered, issued or renewed within the commonwealth shall provide coverage for:

137 (a) necessary pre-cancer dental care, including preventative and restorative treatment to
138 the hard and soft tissues of the oral cavity, fluoride treatments and trays, and medically necessary
139 dental procedures, to reduce or eliminate the risk of infection or to treat tooth decay or tooth loss
140 in enrollees.

141 (b) dental care that is required prior to the commencement of treatment for head and neck
142 cancer including, but not limited to, chemotherapy, immunotherapy, biological therapy, proton
143 therapy, and radiation therapy.

144 (c) post cancer necessary dental care, including preventative dental prophylaxis', scaling
145 and root planing, quarterly cleanings, bi-annual assessments by a periodontist, fluoride
146 treatments including trays, and medically necessary dental procedures to reduce or eliminate the
147 risk of infection; or to treat tooth loss or decay directly or indirectly caused by head and neck
148 cancer treatment.

149 (d) dental procedures required as a result of treatments for head and neck cancer
150 including, but not limited to, chemotherapy, immunotherapy, biological therapy, proton therapy,
151 and radiation therapy.

152 (e) laboratory assessments, medications, treatments, evaluations, examinations, and
153 rehabilitation necessary for head and neck cancer treatment and the restoration of function.

154 (f) patient education, medical devices, prostheses, obturators, dental implants,
155 rehabilitative services necessary to restore, maintain, or improve, the whole or partial function
156 related to eating, breathing, voice, speech, quality of life, social functioning and swallowing; and
157 to approximate the normal appearance of any abnormal structures that is affected by a head and

neck cancer diagnosis and/or the treatment of head and neck cancer, or the side effects resulting from the treatment.

(g) restorative and rehabilitative care including but not limited to: medications, restoration procedures, and other medical interventions required to address impairments resulting from head and neck cancer or its treatment.

SECTION 6. Chapter 176G of the General Laws is hereby amended by inserting after section 4VV the following section:-

Section 4WW. An individual or group health maintenance contract shall provide coverage for:

(a) necessary pre-cancer dental care, including preventative and restorative treatment to the hard and soft tissues of the oral cavity, fluoride treatments and trays, and medically necessary dental procedures, to reduce or eliminate the risk of infection or to treat tooth decay or tooth loss in enrollees.

(b) dental care that is required prior to the commencement of treatment for head and neck cancer including, but not limited to, chemotherapy, immunotherapy, biological therapy, proton therapy, and radiation therapy.

(c) post cancer necessary dental care, including preventative dental prophylaxis', scaling and root planing, quarterly cleanings, bi-annual assessments by a periodontist, fluoride treatments including trays, and medically necessary dental procedures to reduce or eliminate the risk of infection; or to treat tooth loss or decay directly or indirectly caused by head and neck cancer treatment.

179 (d) dental procedures required as a result of treatments for head and neck cancer
180 including, but not limited to, chemotherapy, immunotherapy, biological therapy, proton therapy,
181 and radiation therapy.

182 (e) laboratory assessments, medications, treatments, evaluations, examinations, and
183 rehabilitation necessary for head and neck cancer treatment and the restoration of function.

184 (f) patient education, medical devices, prostheses, obturators, dental implants,
185 rehabilitative services necessary to restore, maintain, or improve, the whole or partial function
186 related to eating, breathing, voice, speech, quality of life, social functioning and swallowing; and
187 to approximate the normal appearance of any abnormal structures that is affected by a head and
188 neck cancer diagnosis and/or the treatment of head and neck cancer, or the side effects resulting
189 from the treatment.

190 (g) restorative and rehabilitative care including but not limited to: medications,
191 restoration procedures, and other medical interventions required to address impairments resulting
192 from head and neck cancer or its treatment.